

CASE SUMMARY

State v. Shimla

SC No. 570/2022 | FIR No. 605/2019, PS Harsh Vihar | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	1 June 2026 (date of inspection / offence: 22 October 2019)
PARTIES	State (BSES Yamuna Power Ltd.) v. Shimla W/o Late Sh. Sukhbir, R/o H. No. D-263, Gali No. 4, Khasra No. 155, Main Road, Pratap Nagar, Delhi-110093
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Convicted under Section 135, Electricity Act, 2003. Civil liability settled during trial for a reduced sum of Rs. 26,000/- (against a theft bill of Rs. 51,607/-), of which Rs. 3,000/- was deposited and the balance stated to be paid shortly. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Shimla dishonestly abstracted electricity at her unmetered premises — used for a shop on the ground floor and residence on the first — through a black cable hooked from the Distribution Box on BSES YPL Pole No. NNG-W159, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether she discharged the onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 22 October 2019 at about 11.40 a.m., an inspection team of BSES Yamuna Power Ltd. headed by Sh. Deepak Singh Verma (the then Assistant Manager) inspected the premises at H. No. D-263, Gali No. 4, Khasra No. 155, Pratap Nagar, Delhi. No electricity meter was installed; the accused was found drawing supply through a black cable connected from the Distribution Box of BSES YPL Pole No. NNG-W159. The connected load was 1.563 KW, used for commercial purposes (a shop on the ground floor) as well as domestic purposes (the first floor); the accused’s son Rahul was present at the spot. Sh. Jagdeep Gill videographed the proceedings and furnished a Section 65B certificate; an Inspection Report and Load Report were prepared at the spot. The company assessed a theft demand of Rs. 51,607/-, which went unpaid, and on its Authorised Officer’s complaint FIR No. 605/2019 was registered at PS Harsh Vihar.

The IO, SI Illa Khan, served the Section 41A Cr.P.C. notice and seized the accused's Aadhaar and Election ID cards and an NCR recording the loss of the premises' ownership documents. Notice under Section 251 Cr.P.C. was given on 21 November 2023; the accused pleaded not guilty. The prosecution examined three witnesses: PW-1 Deepak Singh Verma (team head; proved the CD, inspection report, load report, theft bill and complaint); PW-2 Jagdeep Gill (videographer; proved the video and the Section 65B certificate Ex.PW2/A); and PW-3 SI Illa Khan (IO). Under Section 313 Cr.P.C. the accused denied everything and pleaded false implication; she led no defence evidence. Her counsel submitted that the civil liability had been settled for Rs. 26,000/-, of which Rs. 3,000/- had been deposited and the balance would be paid shortly.

REASONING OF THE COURT

HEADNOTE

A distribution-box tap feeding an unmetered premises used partly as a shop and partly as a home is direct theft under Section 135(1)(a), the widow in occupation being the “consumer”; and even a partial, reduced settlement of the theft bill corroborates guilt rather than closing the criminal case, which the unrebutted third-proviso presumption sustains.

Section 135(1)(a) was engaged by the distribution-box tap. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated the black cable run from the Distribution Box on Pole No. NNG-W159 to the unmetered premises as a clause (a) connection with the licensee's works. On proof of that artificial means the third proviso's presumption arose.

The inspection stood proved through unshaken, 65B-supported evidence. PW-1 and PW-2 were consistent on the absence of any meter, the pole-distribution-box tap and the 1.563 KW mixed shop-and-home load; PW-1 added in cross-examination that the pole from which the theft ran was installed near the premises. The accused's son Rahul was present at the inspection, and neither his identity nor the identity of the premises in the videography was disputed; the load report's correctness went unchallenged.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested.

The presumption was compulsory, and the accused led nothing to rebut it. Following *Neeraj Dutt* (compulsory “shall presume”) and *Hiten P. Dalal* (prudent-man standard), the Court noted the accused led no defence evidence, explained no lawful source for the appliances found, and claimed no Genset. The natural rebuttal — paid electricity bills, per *Mukesh Rastogi* and the Section 106 onus — was never attempted.

Even a reduced, part-paid settlement corroborated guilt. The accused settled the Rs. 51,607/- theft bill for Rs. 26,000/- during trial, depositing only Rs. 3,000/-. The Court reasoned, as elsewhere, that had the claim been false she would have protested and proceeded against the company rather than settling at all; her willingness to compromise, even partially, fortified the prosecution case. The presumption stood unrebutted.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered mixed shop-and-home premises through a cable hooked from the licensee’s pole-mounted distribution box as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 51,607/- assessment measured the theft and required no separate proof as an ingredient.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises and that Shimla was found indulging in direct theft of electricity through an illegal wire — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, she failed to rebut the statutory presumption. **Shimla is accordingly convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

A mixed shop-and-home theft where even a reduced, partly-paid settlement counted against the accused. Five propositions stand out:

- **A reduced, part-paid settlement still corroborates guilt.** Settling the Rs. 51,607/- bill for Rs. 26,000/- and depositing only Rs. 3,000/- was read as conduct inconsistent with innocence, not as a bargained compromise neutralising the criminal charge.
- **Mixed shop-and-home use is one consumer’s theft.** A single tap feeding a ground-floor shop and a first-floor residence is direct theft, assessed across the mixed load.
- **Occupancy fixes consumer status.** The widow in occupation of the premises answered for the abstraction found there.

- **A public witness is not essential.** Official inspection testimony, videographed and 65B-certified, suffices absent shown enmity (*Ashwani Kumar*; *Sushil Sharma*).
- **The reverse-onus presumption did the rest.** No meter, an unexplained running load, no Genset, no paid bills — the compulsory presumption convicted.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.